

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
MIGUEL RAMIREZ,**SUMMONS**

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE OFFICER
MAXIMO GOMEZ, Shield No. 6426, and NYPD
POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-
10,Plaintiff designates Bronx
County as the place of trial.Defendants.
----- X**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 14, 2021

Yours, etc.

_____
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER MAXIMO GOMEZ, Shield No. 6426, 44th Precinct; 2 East
169th Street, The Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

MIGUEL RAMIREZ,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MAXIMO GOMEZ, Shield No. 6426, and NYPD
POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-
10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff MIGUEL RAMIREZ, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 13, 2020, at approximately 4:00p.m., plaintiff MIGUEL RAMIREZ, while lawfully in the vicinity of Walton Avenue and East 151st Street in The Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant NYPD Officers. In addition, Plaintiff was subjected to excessively tight metal handcuffs which resulted in injury to both of his wrists. Plaintiff was then unlawfully imprisoned at 44th Precinct and Bronx Central Bookings for approximately 24 hours until plaintiff was arraigned in Criminal Court, charged with crimes he did not commit, and released on his own recognizance. Plaintiff was denied the right to due process and a fair trial until the Class A-1 Felony Possession charges against Plaintiff were dismissed and sealed on or about September 10, 2020, as Plaintiff committed no crime. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff MIGUEL RAMIREZ is a resident of the state of New York.
3. NYPD POLICE OFFICER MAXIMO GOMEZ, Shield No. 6426, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE OFFICER MAXIMO GOMEZ, Shield No. 6426, was at all times relevant herein, assigned to the 44th Precinct.
5. NYPD POLICE OFFICER MAXIMO GOMEZ, Shield No. 6426, is being sued in his individual and official capacity.
6. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendant(s) were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.
11. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on November 12, 2020.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On August 13, 2020, at approximately 4:00 P.M., Plaintiff was lawfully present in the vicinity of Walton Avenue and East 151st Street in The Bronx, New York, when the Defendant NYPD Officers unlawfully stopped, questioned, frisked, and falsely arrested Plaintiff without probable cause or legal justification.

16. Plaintiff had been to a local arts and crafts store, Michael's, to purchase some items he needed to complete a painting project at his friend's house.

17. After leaving the store, Plaintiff drove back toward his friend's house in his vehicle.

18. Plaintiff had only made it a few blocks down the road when an unmarked police car turned on its blue lights and approached his vehicle from behind, immediately prompting him to pull over to the side of the road.

19. Plaintiff had committed no VTL infractions in his vehicle, but the Defendant Officers pulled him over anyway.

20. Three defendant officers exited the vehicle and approached Plaintiff's window to ask him for his driver's license and registration information.

21. Plaintiff was in the middle of giving his information to the defendant officer when he was suddenly instructed to step out of his vehicle.

22. Plaintiff complied and got out of his car, and without any question or explanation the defendant officers began to search his vehicle.

23. Plaintiff watched as the officers retrieved a black plastic bag from the back floorboard, which he knew to contain pool cleaner. The Plaintiff's birthday was the following day, and he had rented an Air B&B with a pool to celebrate; the pool cleaner had been acquired for him by his friend, to ensure the pool was safe to use in the ongoing Covid-19 pandemic conditions.

24. Plaintiff was then told he was being placed under arrest, and unlawfully handcuffed by Defendant NYPD Officers.

25. Defendant officers ignored Plaintiff's assertions that the substance inside the bag was in fact pool cleaner.

26. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

27. Nevertheless, Plaintiff was unlawfully arrested, handcuffed, and subject to pat-down search by defendant officers without legal justification or probable cause.

28. At no point did Plaintiff resist arrest or become combative with Defendants NYPD Officers.

29. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody or control.

30. Defendants then transported Plaintiff to the 44th Precinct police station against his will and still in handcuffs, where Plaintiff was unlawfully photographed, fingerprinted, and detained in a holding cell. The metal handcuffs were excessively tight, causing injury to the plaintiff's wrists.

31. Plaintiff repeatedly asked what he was being charged with, but defendant officers refused to tell him.

32. Plaintiff was then transferred against his will to Bronx County Central Bookings.

33. The defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

34. Specifically, the Defendant NYPD officers falsely stated to the District Attorney's Office that the Plaintiff was engaged in Criminal Possession of a Controlled Substance in the 1st Degree, a Class A-1 Felony.

35. On August 14, 2020, after approximately 24 hours in unlawful custody, Plaintiff was arraigned in Bronx County Criminal Court and charged with crimes that the defendant officers had no basis to allege that he committed.

36. Based on the Defendant Officers false allegations, claiming that the client had about \$2 million dollars worth of raw drugs in a bag in his car, the Bronx District Attorney asked for \$250,000 bail.

37. Seeing that Plaintiff had no prior criminal record, and that it was also his birthday, the judge denied the Assistant District Attorney's request for unusually high bail and released Plaintiff on his own recognizance.

38. About a week before the Plaintiff's next court date, he was informed that the lab results for the contents of the bag from his car came back negative for any illegal substance; it was, indeed, pool cleaner.

39. Thereafter, on or about September 10, 2020, all criminal charges against Plaintiff were dismissed and sealed in their entirety.

40. Plaintiff missed at least two full days of independent contracting work due to these false charges and proceedings made against him by defendant officers; one of his clients actually saw him getting arrested and thereafter declined to use his services.

41. Plaintiff also lost two iPhones as a result of this incident, which were confiscated by defendant officers when he was arrested and never returned to him.

42. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, and denying Plaintiff the right to due process and a fair trial.

43. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the defendants caused Plaintiff to sustain psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

44. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The individually named police officer defendants while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

47. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

49. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

53. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

55. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

56. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

59. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search Plaintiff.

62. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

66. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein

67. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

68. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

69. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

70. In withholding/creating false evidence against Plaintiff MIGUEL RAMIREZ, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

71. As a result of the foregoing, Plaintiff MIGUEL RAMIREZ sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligence

75. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. Defendants owed a duty of care to Plaintiff.

77. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against him

was unintentional, then the defendants breached that duty of care by leaving him tightly handcuffed and causing injury to his wrists.

78. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

79. All of the foregoing occurred without any fault or provocation by Plaintiff.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

83. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The use of unlawful arrest, search and seizure, neglect, and excessive force by Defendants NYPD Officers constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

85. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

86. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

88. Defendants commenced and continued a criminal proceeding against Plaintiff.

89. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

90. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

91. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

92. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

95. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, MIGUEL RAMIREZ. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

97. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

98. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

102. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

104. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, and psychological injuries.

ELEVENTH CAUSE OF ACTION

Failure to Intervene

105. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 104 with the same force and effect as if more fully set forth at length herein.

106. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

107. Defendants failed to intervene to prevent the unlawful conduct described herein.

108. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

109. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

110. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

111. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

112. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

113. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff MIGUEL RAMIREZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 14, 2021

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC

Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER MAXIMO GOMEZ, Shield No. 6426, 44th Precinct; 2 East
169th Street, The Bronx, NY 10452

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 14, 2021



CAITLIN ROBIN